



Province of Alberta

PUBLIC SECTOR COMPENSATION
TRANSPARENCY ACT

**PUBLIC SECTOR COMPENSATION
TRANSPARENCY DISSOLVED PUBLIC
SECTOR BODIES REGULATION**

Alberta Regulation 113/2017

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Extract

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ALBERTA REGULATION 113/2017

Public Sector Compensation Transparency Act

PUBLIC SECTOR COMPENSATION TRANSPARENCY DISSOLVED PUBLIC SECTOR BODIES REGULATION

Public sector bodies' disclosure on dissolution

1(1) Before being dissolved, amalgamated or otherwise ceasing to exist, a public sector body must disclose

- (a) the statement of remuneration in relation to the previous calendar year referred to in section 3(5.1)(b) of the Act, and
- (b) the statement of remuneration in relation to the current calendar year referred to in section 3(5.1)(a) of the Act.

(2) The disclosure required under subsection (1) must

- (a) contain the information required in accordance with section 3(2), (4) and (5) of the Act, and
- (b) be made in the form and manner determined by the Minister.

(3) If a public sector body does not disclose a statement of remuneration referred to subsection (1), the public sector body must provide to the Government of Alberta the information required to prepare the statement of remuneration.

Government of Alberta disclosure

2(1) If a public sector body does not disclose a statement of remuneration referred to section 1(1), the Government of Alberta must disclose the statement as soon as practicable after receiving the information referred to in section 1(3), and in no case later than June 30 of the calendar year following the year in which the public sector body was dissolved, amalgamated or otherwise ceased to exist.

(2) If

- (a) a public sector body does not disclose a statement of remuneration referred to in section 1(1),

- (b) the public sector body does not provide the information referred to in section 1(3), and
- (c) the Government of Alberta has, or is able to collect, some or all of the information required,

the Government of Alberta must, as soon as practicable, and in no case later than June 30 of the calendar year following the year in which the public sector body was dissolved, amalgamated or otherwise ceased to exist, disclose a statement of remuneration in accordance with this section.

(3) The disclosure required under subsection (1) must

- (a) contain the information required in accordance with section 3(2), (4) and (5) of the Act, and
- (b) be made in the form and manner determined by the Minister.

(4) The disclosure required under subsection (2) must

- (a) contain the information required in accordance with section 3(2), (4) and (5) of the Act that the Government of Alberta has, or is able to collect, and
- (b) be made in the form and manner determined by the Minister.

(5) The Government of Alberta may, as necessary to comply with its duties under section 3(5.1) of the Act and this Regulation,

- (a) collect information, including personal information, indirectly from the public sector body or otherwise, and
- (b) use and disclose that information.

**Personal information where payment
by Government of Alberta**

3 For the purposes of enabling a public sector body to comply with its duties under section 3(5.1) of the Act and this Regulation, if an employee or member of a public sector body receives compensation from the Government of Alberta, or has a contract with the Government of Alberta respecting the appointment, employment, severance or other terms and conditions for the termination of the appointment or employment of the employee or member,

- (a) the Government of Alberta may disclose that employee's or member's personal information, including contracts, to the public sector body and to the public, and
- (b) the public sector body may collect that employee's or member's personal information, including contracts, from the Government of Alberta.

Transitional

4(1) In this section, "successor" means the entity that has custody or control of the records of a public sector body that has been dissolved, amalgamated or otherwise has ceased to exist.

(2) Nothing in this regulation requires or authorizes the disclosure of compensation information for any year prior to 2015.

(3) If a public sector body was dissolved, amalgamated or otherwise ceased to exist before the coming into force of this regulation, the successor must, on or before June 30, 2017, make the disclosures referred to in section 3(5.1)(a) and (b) of the Act.

(4) The disclosure required under subsection (3) must

- (a) contain the information required in accordance with section 3(2), (4) and (5) of the Act that the successor has in its custody or control, and
- (b) be made in the form and manner determined by the Minister.



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